

Mahtab Ali v. Executive Engineer Electricity Distribution

High Court of Judicature at Allahabad · Division Bench · 27 July 2022 · Writ-C No. 19911 of 2022 (Allahabad) · WRIT - C No. - 19911 of 2022 · **Writ disposed; para 6.8 objection liberty; coercive recovery stayed eight weeks.**

HEADNOTE

A writ seeking to quash a recovery certificate on an electricity demand is disposed of without examining merits where the licensee states that an objection will be decided in a time-bound manner. The consumer is relegated to an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, with a short stay of coercive recovery pending that disposal.

FACTUAL SUMMARY

Mahtab Ali petitioned the Allahabad High Court to quash a recovery certificate dated 28 February 2022, issued by the Executive Engineer of the distribution licensee to the District Collector and endorsed by the Tehsildar as recovery officer, and for mandamus directing its withdrawal. Counsel for the corporation stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in a time-bound manner in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand and recovery certificate

HOLDING

Without expressing any opinion on merits, a writ challenging a recovery certificate on an electricity demand is disposed of by granting liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, within four weeks; the licensee shall decide that objection in accordance with law within the next four weeks after hearing; coercive recovery on the impugned demand remains stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The Court declined to examine the recovery certificate on merits and relegated the consumer to an objection under para 6.8 of the Supply Code, as offered by the licensee. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If the para 6.8 objection is filed within four weeks, the licensee must decide it after hearing within the next four weeks, and coercive action on the demand is stayed for eight weeks or until that disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CERTIFICATE AND THE UNDERLYING DEMAND

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1